

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samrawit Tadesse	Team: Team # 7	CCRB Case #: 200608038	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 06/18/2006 4:15 PM	Location of Incident: the park across the street from 111 Humboldt Street	18 Mo. SOL 12/18/2007	Precinct: 90		
Date/Time CV Reported Sun, 06/18/2006 4:51 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 06/18/2006 4:51 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Winston Willabus	25301	935969	090 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Winston Willabus	Discourtesy: PO Winston Willabus spoke obscenely and rudely to § 87(2)(b)	A . Complaint Withdrawn

Synopsis

On June 18, 2006, § 87(2)(b) left a message on the CCRB's Call Processing System alleging the following incident:

On June 18, 2006, at approximately 4:15pm, § 87(2)(b) was sitting in the park, across the street from 111 Humboldt Street in Brooklyn, drinking O'Doul's beer when PO1, who is described as a 5'9", black, male in a patrol van, gave him a summons. When § 87(2)(b) explained to PO1 that O'Doul's was a non-alcoholic beverage PO1 told him "Take it up with the fucking judge." When § 87(2)(b) told PO1 to write on the summons that he was drinking O'Doul's, PO1 said that he will "put down whatever the hell he wants."

During the phone conversation with § 87(2)(b) on June 27, 2006, he stated that at approximately 4:15pm on June 18, 2006, § 87(2)(b) was in the park that was across the street from 111 Humboldt Street in Brooklyn. He was sitting on a park bench watching his grandson playing in the park. He was drinking O'Doul's beer, which is a non-alcoholic beverage. An officer, PO1, described by § 87(2)(b) as a uniformed, black, male, 5'9" – 5'10", slim, and having a slight moustache, sitting in the driver seat of a marked police van, motioned for § 87(2)(b) to come over. § 87(2)(b) walked over to the driver's side of the marked police van. § 87(2)(b) stated PO1 said to him, "You haven't learned your lesson?" § 87(2)(b) knew PO1 was referring to the open container of O'Doul's beer because of previous interactions with PO1. § 87(2)(b) stated that PO1 started writing out a summons. When he tried to explain to PO1 that he was drinking a non-alcoholic beverage, PO1 replied "Take it up with the fucking judge." § 87(2)(b) then stated to PO1 that in the past when other officers stopped him, he told them that O'Doul's is a non-alcoholic beverage and that they never issued him a summons. § 87(2)(b) then asked PO1 to call a supervisor to explain why a summons was being issued for having an open container of O'Doul's beer. PO1 stated that he was going to keep issuing summonses to § 87(2)(b) whenever he saw him with an open container of O'Doul's beer and that if § 87(2)(b) did not want that to happen PO1 said "you should drink it in your apartment" to which § 87(2)(b) replied that he did not want to do that. PO1 issued § 87(2)(b) a summons for an open container and left without incident.

§ 87(2)(b) indicated that this was the third time that he has interacted with PO1, but this incident was the one and only time it resulted in a summons being issued by PO1. The other interaction that he had with PO1 occurred two to three days after the incident under investigation during which § 87(2)(b) said that he was once again called over to a marked van that PO1 was driving and told "I guess you learned your lesson" to which § 87(2)(b) replied that there was no lesson to learn at which point the conversation ended. § 87(2)(b) indicated that he did not wish to file a complaint for the second incident because he stated that there was nothing that occurred except a brief conversation.

When Investigator Tadesse called § 87(2)(b) on June 27, 2006, § 87(2)(b) said that he was able to get the shield number of PO1, 25301, by looking at his shield number during the incident. § 87(2)(b) also provided the tax registry number of the police officer who issued the summons, which was 931969. When the tax registry number was checked in the CCRB database the physical description of the police officer assigned this tax number did not match the descriptions given by § 87(2)(b). The tax registry number belonged to a white male officer assigned to the 42nd precinct. The physical description § 87(2)(b) supplied for PO1 did not match that of the police officer with the tax registry number on the summons. However the shield number provided by § 87(2)(b) matched that of PO Winston Willabus from the 90th precinct. PO Winston Willabus' tax registry number was 935969. § 87(2)(g)

On June 27, 2006, the undersigned investigator called § 87(2)(b) and explained the investigative process and the mediation process to § 87(2)(b) in detail. § 87(2)(b) indicated that he would be interested in mediation because he wanted an opportunity to discuss the matter directly with the officer involved. § 87(2)(b) was told that mediation would have no effect on the outcome of the summons, and that mediation is non-disciplinary and voluntary for both the officer and the complainant.

The investigator's conversation with § 87(2)(b) was recorded on the tape labeled, § 87(2)(b) § 87(2)(b) 2090608038 Phone Interview." The case was then forwarded to the ADR Unit.

On September 19, 2006, the undersigned investigator called § 87(2)(b) to inform him that PO Winston Willabus rejected mediation and asked if he wished to pursue the investigative process to resolve his complaint. § 87(2)(b) stated that he was no longer interested in pursuing his complaint § 87(2)(b)

§ 87(2)(b) stated that his decision to withdraw his complaint was voluntary and that he was not coerced into this decision by a member of the NYPD or an employee at the CCRB. This conversation was recorded on tape labeled "200608038 § 87(2)(b) Withdrawal Complaint" and reviewed by Supervisor Jessica Long.

§ 87(2)(b) was sent a "Withdraw complaint letter," on September 19, 2006. The letter will be added to the case file if and when it is returned to agency.

§ 87(2)(g) it is recommended that this case be closed as **complaint withdrawn**.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: